

CLAIM FORM

UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF FLORIDA

Cavallaro-Kearins v. Modernizing Medicine, Inc.

Case No. 9:25-cv-81443-EA

ModMed Data Incident Settlement
P.O. Box 25226
Santa Ana, CA 92799

(833) 421-7331
info@ModernizingMedicineDataSettlement.com
www.ModernizingMedicineDataSettlement.com

TO BE ELIGIBLE TO RECEIVE BENEFITS FROM THIS SETTLEMENT, YOU MUST BE A SETTLEMENT CLASS MEMBER.

The court has defined the Settlement Class this way: “All living individuals residing in the United States who were sent a notice of the Data Incident indicating their Private Information was impacted in the Data Incident.”

Excluded from the Settlement Class are: (1) all persons who are directors, officers, and agents of Defendant, or their respective subsidiaries and affiliated companies; (2) governmental entities; (3) the Judge assigned to the Action, that Judge’s immediate family, and Court staff; and (4) any member of the Settlement Class that timely and validly opt-outs of the Settlement.

You may submit your Claim Form through the Settlement Website, www.ModernizingMedicineDataSettlement.com, or by completing and signing this Claim Form.



Claims must be received by November 2, 2026.



Paper Claim Forms must be mailed through the United States Postal Service, so that they are received by the Settlement Administrator **no later than November 2, 2026**. Please mail to:

Settlement Administrator
ModMed Data Incident Settlement
P.O. Box 25226
Santa Ana, CA 92799

Do not mail or deliver your Claim Form to the Court, the Settling Parties, or their counsel.

GENERAL INFORMATION

1. Complete information about the proposed Settlement is available at www.ModernizingMedicineDataSettlement.com.
2. If you submitted a request to opt-out from the Settlement, do not submit a claim.
3. Submit only one Claim Form, online or paper, per person.

SETTLEMENT BENEFITS

ModMed will establish a Settlement Fund of \$2,999,750.00. The Settlement Fund will first be used to pay court-approved attorneys' fees and costs and the costs of administering the Settlement. The remaining Net Settlement Fund will be used to pay for the Settlement benefits described below.

MEDICAL DATA MONITORING. All Settlement Class Members are eligible to enroll in two years of CyEx Medical Shield Complete. This comprehensive service comes with \$1 million of medical identity theft insurance with no deductible, and includes real time monitoring with one credit bureau; dark web scanning with immediate notification of potential unauthorized use; security freeze assistance; and identity theft victim assistance. If anything suspicious happens, you will be able to talk to a fraud resolution agent to help fix any problems.

CASH PAYMENTS. In addition to Medical Data Monitoring, all Settlement Class Members may elect Cash Payment A – Documented Losses or Cash Payment B – Alternate Cash:

Cash Payment A – Documented Losses. If you incurred actual, documented out-of-pocket losses due to the Data Incident, you can get back up to **\$5,000.00**. The losses must have occurred between July 9, 2025, and November 2, 2026.

This benefit covers out-of-pocket expenses like:

- losses because of identity theft or fraud
- fees for credit reports, credit monitoring, or freezing and unfreezing your credit
- cost to replace your IDs
- postage to contact banks by mail

You need to send reasonable documentation supporting the losses, which means documentation contemporaneously generated or prepared by a third party supporting a claim for expenses paid. Non-exhaustive examples include telephone records, correspondence including emails, or receipts. Your personal certification, declaration, or affidavit does not constitute reasonable documentation but may be included to provide clarification, context, or support for other submitted reasonable documentation.

You shall not be reimbursed for expenses if you have been reimbursed for the same expenses by another source, including compensation provided in connection with the credit monitoring and identity theft protection product offered as part of the notification letter provided by ModMed or otherwise.

If you do not submit reasonable documentation supporting a loss, or if your claim is rejected by the Settlement Administrator for any reason, and you fail to cure your claim, the claim will be rejected and will be treated as if you elected Cash Payment B – Alternate Cash.

OR

Cash Payment B – Alternate Cash. *Instead of any other payments*, you may claim a one-time estimated **\$75.00** cash payment. You do not have to provide any proof or explanation to claim this payment.

Depending on the total number and total value of Cash Payment claims, your payment may be slightly higher or lower than the amount you claim.

A full explanation of how this works is provided in Paragraph 71 of the Settlement Agreement, which can be found at www.ModernizingMedicineDataSettlement.com.

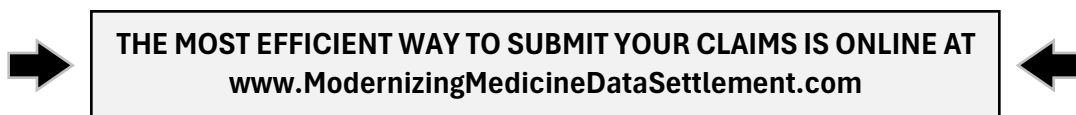
If you have questions about these benefits, you can ask for free help any time by contacting the Settlement Administrator at:

Online: www.ModernizingMedicineDataSettlement.com

By email: info@ModernizingMedicineDataSettlement.com

By toll-free call: (833) 421-7331

By mail: Settlement Administrator
ModMed Data Incident Settlement
c/o Settlement Administrator
25226
Santa Ana, CA 92799-9958



You may also print out and complete this Claim Form, and submit it by U.S. mail.



If you contact information changes after you submit your claim, notify the Settlement Administrator.

I. SETTLEMENT CLASS MEMBER NAME AND CONTACT INFORMATION

Please complete this entire section. The Settlement Administrator will use this information to get in touch with you regarding your claim. If you contact information changes after you submit your claim, notify the Settlement Administrator. **Please write legibly.**

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II. MEDICAL DATA MONITORING

- ☐ Check this box if you would like to enroll in two years of Medical Data Monitoring from CyEx Medical Shield Complete.

III. CASH PAYMENT A – DOCUMENTED LOSSES

- ☐ Check this box if you would like to claim reimbursement for documented losses due to identity theft or fraud. You can get back up to \$5,000.00. **DO NOT CLAIM THIS BENEFIT IF YOU ARE CLAIMING A PAYMENT FROM SECTION IV.**

Please complete the table below, describing the supporting documentation you are submitting.

Description of Documentation Provided	Amount
<i>Example: Unauthorized bank transfer</i>	\$500
TOTAL CLAIMED:	

If you have more expenses than rows, you may attach additional sheets of paper to account for them. Please print your name and sign the bottom of each additional sheet of paper.

IV. CASH PAYMENT B – ALTERNATE CASH

- ☐ Check this box if you want to claim a one-time estimated \$75.00 cash payment. **DO NOT CLAIM THIS BENEFIT IF YOU ARE CLAIMING A PAYMENT FROM SECTION III.**

V. PAYMENT SELECTION

Please select **one** of the following payment options, which will be used if you are claiming a cash payment.
NO CHECKS WILL BE SENT.

- ☐
- PAYPAL

Email address associated with your PayPal account, if different than you provided in Section I:

[illegible]

- ☐ **VENMO**

Telephone number associated with your Venmo account, if different than you provided in Section I:

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- ZELLE**

Email address associated with your Zelle account, if different than you provided in Section I:

[illegible]

OR

Telephone number associated with your Zelle account, if different than you provided in Section I:

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- ☐
- VIRTUAL PREPAID CARD**

Email address where you want to receive your prepaid card, if different than you provided in Section I:

[illegible]

VI. ATTESTATION AND SIGNATURE

I swear and affirm on penalty of perjury that the information provided in this Claim Form, including supporting documentation, is true and correct to the best of my knowledge. I understand that my claim is subject to verification and that I may be asked to provide supplemental information by the Settlement Administrator before my claim is considered complete and valid.

Settlement Class Member Signature

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DD

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Jian Zeng

Please print or type your name on the line above.